

FILED
STATE OF MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI
LAFAYETTE COUNTY

PHYLLIS MARIE CROWDER (KESTER)
PETITIONER

SEP 30 A 10:58

V. CHANCERY CLERK

CAUSE NO. 2016-422W

MATTHEW OLIVER REARDON BY DC TJ RESPONDENT

ORDER ON MOTION FOR RECUSAL

THIS CAUSE came on to be considered on *Motion for Recusal*, filed by Matthew Reardon on September 28, 2021; and the Court having considered the same does find and order as follows that:

1. The Court has jurisdiction over the parties and subject matter herein, and venue is proper.
2. The initial action was filed by the Parties with a *Joint Complaint to Establish Paternity, Child Custody, and Child Support* on August 3, 2016. Ms. Kester was represented by the Honorable J. Rhea Tannehill, and Mr. Reardon was represented by the Honorable Andy T. Arant.
3. The Court entered an *Agreed Order to Establish Paternity, Child Custody, and Child Support* filed on August 8, 2016.
4. The second action was initiated by Ms. Kester when she filed a *Petition for Emergency, Temporary Relief Without Notice and a Petition for Citation of Contempt* on May 1, 2017. She was represented then by the Honorable Mona T. Pittman.
5. The Court signed an *Emergency Order* also filed on May 1, 2017.
6. A *Rule 81 Summons* was issued to Mr. Reardon on May 1, 2017, and executed on him on May 1, 2017, later filed on May 3, 2017. The *Emergency Order* also included the setting date for the Temporary Hearing for May 9, 2017.

7. Mr. Reardon filed, *pro se*, an *Answer to Petition for Emergency, Temporary Relief Without Notice; Answer to Petition for Citation of Contempt and Respondent's Counterclaim* on May 8, 2017.
8. A *Notice of Limited Appearance* and *Motion to Dismiss* was filed on behalf of Mr. Reardon on May 9, 2017 by the Honorable Charles E. Yow, II.
9. The Parties reached an agreement on May 9, 2017 regarding the *Temporary Restraining Order* entered by this Court on May 1, 2017. The Court, pursuant to *Rule 65* thereby withdrew its *Order* dated May 1, 2017, and entered a *Preliminary Injunction* as agreed to by the Parties, which was filed on May 10, 2017. Both Parties agreed to psychological and hair follicle drug testing. This matter was continued for further hearing until August 10, 2017 for all other matters not addressed in this *Order*. Both Parties were represented at this time.
10. **Ms. Kester initiated a third action when she filed a *Petition for Contempt and Other Relief* on May 26, 2017. She was represented again by the Honorable Mona T. Pittman.**
11. Ms. Kester issued a *Rule 81 Summons* to Mr. Reardon on May 26, 2017, which commanded him to Court on this matter for June 8, 2017. It was executed on him and filed on May 30, 2017. An *Order of Setting* for June 8, 2017 was filed on May 24, 2017.
12. Mr. Reardon's drug test results were filed on May 30, 2017, where he tested positive for marijuana and alcohol consumption.
13. A *Withholding Order* was filed in this matter on June 8, 2017.
14. On June 22, 2017, an *Entry of Appearance* was filed by the Honorable B. Brennan Horan on behalf of Mr. Reardon.

15. On June 27, 2017, an *Order* was filed which continued this matter from June 8, 2017 to a date that could be mutually agreed upon by the Parties; extended the May 9, 2017 *Temporary Restraining Order* until further Order of the Court; and ordered, again, the Parties to undergo psychological testing. Ms. Kester remained represented by Ms. Pittman, and now Mr. Reardon was represented by the Honorable William C. Stennett.
16. On September 11, 2017, a *Motion to Modify Prior Order of the Court* was filed by Mr. Reardon.
17. On May 22, 2018, an *Agreed Order for Modification* was filed. Both Parties were represented at this time.
- 18. A fourth action was initiated by Ms. Kester on September 30, 2020 by a *Petition for Modification and Other Relief*. Ms. Kester was again represented by Ms. Pittman.**
19. A *Rule 81 Summons* was issued to Mr. Reardon on September 30, 2018 for a hearing on November 10, 2020. Mr. Reardon was served with the *Rule 81 Summons* on October 10, 2020, which was filed on October 13, 2020. An *Order of Setting* this matter for November 10, 2020 was filed on October 2, 2020.
20. On October 8, 2020, Ms. Kester filed an *Emergency Petition for Citation of Contempt, Modification of Custody, Child Support, and Preliminary Injunctive Relief with Exhibit A & B*.
21. On October 15, 2020, Mr. Reardon, *pro se*, issued a *Rule 81 Summons* to Ms. Kester on a *Response Counterclaim to Include Modification of Custody, Child Support, and Reassignment of Custody, Prayer for Withdrawal of Current Withholding Order, Assessment of Other Party for Child Support, Prayer for Permanent Injunctive Relief and Application of Sanctions, the Rendering of Criminal Charges of Perjury as a Future*

Deterrent by this Honorable Court as Warranted. He issued this *Summons* for November 10, 2020; and filed his *Response Counterclaim* on October 16, 2020. He never perfected process over Ms. Kester for the same, as well as neither setting his *Response by Order of Setting*.

22. An *Order Resetting Hearing* was filed on November 6, 2020, continuing Ms. Kester's *Petition* to November 16, 2020.

23. On November 9, 2020, a *Motion for Appointment of Guardian Ad Litem with Exhibits* was filed by Ms. Kester.

24. On November 13, 2020, Ms. Kester filed an Answer to Mr. Reardon's *Counterclaim*.

25. On November 13, 2020, Mr. Reardon filed an *Objection and Response to Petitioner's Motion for Appointment of Guardian Ad Litem, Motion for Dismissal of Assignment and Motion to Show Cause*.

26. On November 16, 2020, Mr. Reardon filed a *Motion to Dismiss or, in the Alternative, to Transfer Venue*.

27. On November 16, 2020, this matter was ordered to be continued to January 28, 2021; allowed Mr. Reardon supervised visitation; allowed for Mr. Reardon's monthly child support obligation to be reduced from \$600.00/month to \$400.00/month; and appointed a GAL as contained in the *Temporary Order* filed on November 19, 2020.

28. On November 25, 2020, Mr. Reardon filed a *Petition for Permission for Interlocutory Appeal to the Mississippi Supreme Court with Exhibits*.

29. On December 17, 2020, an additional *Order Appointing Guardian Ad Litem* was filed.

30. On December 29, 2020, Mr. Reardon filed an *Objection, Rejection, Condemnation, and Rebuke of Order of Guardian Ad Litem with Exhibits*.

31. On January 4, 2021, Ms. Kester filed a *Motion to Stay Proceedings*.
32. On January 11, 2021, Mr. Reardon filed a *Motion to Dismiss*.
33. On January 12, 2021, Mr. Reardon filed an *Amended Motion to Dismiss with Exhibits*.
34. Ms. Kester's *Motion to Stay* was set by an *Order of Setting* for January 28, 2021 and filed on January 15, 2021. Mr. Reardon's *Motion to Dismiss* was set by an *Order of Setting* for January 28, 2021 and also filed on January 15, 2021.
35. An *Application for Records Involving a Child* was filed on January 15, 2021 by Ms. Kester.
36. An *Order for Disclosure of Records* was filed by Ms. Kester on January 21, 2021.
37. A *Motion for Disclosure of Records* was filed by the GAL on January 21, 2021.
38. On January 25, 2021, Mr. Reardon filed a *Motion to Quash, Suppress, and Sanction Petitioner and Petitioner's Legal Counsel*.
39. On January 27, 2021, Mr. Reardon filed an *Amended Motion to Quash, Suppress, and Sanction Petitioner and Petitioner's Legal Counsel with Exhibits*.
40. Also on January 27, 2021, Mr. Reardon filed an *Order of Setting* for his *Amended Motion* and set it for January 28, 2021.
41. On January 28, 2021, Special Assistant Attorney General K. Steven Saul, Jr. for the State of Mississippi, filed a *Motion to Quash Subpoena Duces Tecum*.
42. On the date of the January 28, 2021 hearing, the Parties reached a temporary agreement and solemnized it in an *Agreed Temporary Order* that was filed on January 29, 2021; and was signed by Ms. Pittman, attorney for Ms. Kester; Petitioner; the GAL; and Mr. Reardon. All Parties agreed to continue this matter for a hearing on the merits to March 23, 2021.

43. On February 10, 2021, Mr. Reardon filed a *Motion to Dismiss GAL Appointment*.
44. On March 23, 2021, again the Parties reached an agreement and filed their *Agreed Order*.
45. On March 25, 2021, the *Order from Supreme Court* was filed whereby it held that the *Petition for Permission for Interlocutory Appeal* was untimely filed and therefore dismissed.
46. A fifth action was attempted to be initiated by Mr. Reardon on July 12, 2021 where he filed a *Petition for Citation of Contempt and Modification of Child Support Agreement*. He later amended said *Petition* and filed the amendment on August 4, 2021. He issued a *Rule 81 Summon* to Ms. Kester on August 19, 2021; but he never perfected process over her for it as provided by Rule 81(d)(2) (personal service required in contempt actions).
47. A fifth action was initiated by Ms. Kester on August 10, 2021 where she filed a *Petition for Modification, Citation for Contempt, and Other Relief*. She issued a *Rule 81 Summons* to Mr. Reardon on August 19, 2021 and again on August 24, 2021, and had it executed on September 3, 2021 and later filed on September 9, 2021. This matter was set by *Order of Setting* for September 14, 2021, and filed on September 19, 2021.
48. On September 9, 2021, Mr. Reardon filed an *Answer and Counterclaim to Petition for Modification, Citation for Contempt, and Other Relief*. He never issued process to Ms. Kester as provided by Rule 81(d)(2).
49. On September 14, 2021, the Court continued this matter to January 12, 2022, ordered Mr. Reardon to submit to a nail bed drug test, and suspended Mr. Reardon's visitation by *Order* filed on September 14, 2021.

50. On September 28, 2021, Mr. Reardon filed a *Motion for Dismissal, or in the alternative for Recusal* (2nd). He hand delivered the original of the same to the Court on September 28, 2021; and is the subject of this *Order*.
51. This Court must rule on Mr. Reardon's *Motion to Recuse* within thirty (30) days of the filing of the *Motion* pursuant to **Uniform Chancery Court Rule 1.11**. Mr. Reardon did not attempt to obtain a setting date for this *Motion* from the Court Administrator when he hand delivered his *Motion*. However, the Court is of the opinion that a hearing on this *Motion* is not necessary as Mr. Reardon thoroughly raised his issues with the Court in his written *Motion*. Further, all previously raised issues that he has reasserted in this *Motion* were adjudicated by agreement of the Parties and now MOOT. Therefore the Court files this *Order*.
52. First, Mr. Reardon argues that this is his second (2nd) attempt in asking this Court to recuse from his case. The Court is not aware of any previous request for recusal by Mr. Reardon. A *Motion for Recusal* has never been filed or served upon the Court by Mr. Reardon. However, if one was, it was moot as all proceedings that were previously set before this Court were resolved by agreement of the Parties and therefore waived. Therefore the Court considers this *Motion* to be Mr. Reardon's first request for its recusal.
53. Mr. Reardon argues that:
- Under the Mississippi Rules of Criminal Procedure Defendant now faces Double Jeopardy based on the same set of facts asserted and forcing the Defendant to waive his Fourth Amendment Right and in doing so forgo his [F]ifth [A]mendment [R]ight against self-incrimination by ordering Defendant to prove his innocence and give evidence to the State, or forgo visitation with his minor child. Underserved exploitation of the minor child, by way of making a presumable innocent man and father whom has ongoing matters involving alleged civil rights violations, choose between

protecting his civil rights seemingly further under siege or surrender his rights in an apparent barter for due time with his minor child specified out in the current child visitation agreement with which is further supported by his continued compliance with child support obligations continuously being paid to petitioner pursuant to the current child support agreement and subsequent withholding order. The purposes served by Rule 2.2 are in accord with Mississippi law and the mandates of the Fourth Amendment to the United States Constitution.

54. The Court is sympathetic to Mr. Reardon and his argument but it is completely without merit. First of all, the Court is unaware of the facts and circumstances that Mr. Reardon is concerned about causing him Double Jeopardy, or being a violation of his Fourth and Fifth Amendment Rights. He was ordered to take a nail bed drug test on September 14, 2021 due to a charge of paraphernalia in Calhoun County, Mississippi. According to Mr. Reardon and Ms. Pittman, this charge has been retired to the file pending Mr. Reardon's good behavior in Calhoun County. The reason for this Court to Order the nail bed drug test on Mr. Reardon is related to that charge in the sense that he received it, but not to prove that charge or incriminate him of that charge. Mr. Reardon is a father of a minor child who had visitation rights. That means he has periods of time that he is allowed to have unsupervised and unfettered visitation with his minor child. If there is any reason that this Court believes he might be using or taking illegal drugs, then it is within its purview to order drug testing. Further, innocence and guilt have no place in Chancery Court. Instead, this Court considers what is in the best interest of the child, and the best interest of the child is to have visitation with a parent that is not using illegal drugs. Once Mr. Reardon can show that he is not using illegal drugs, he can resume his visitation. It is up to him, take the drug test, test negative, and get visitation; test positive, and no

visitation until a negative drug test can be obtained by him. The Court finds this argument without merit.

55. Mr. Reardon next argues that he has raised the same grievances over and over about Ms. Kester in regard to her allegedly withholding the minor child. He states that: “[E]ach motion brought before this court has been prejudicially ignored with preferential treatment shown to the petitioner ...”

56. Mr. Reardon has previously asserted counterclaims against Ms. Kester, but has mutually agreed to resolve them by *Agreed Order* either on the date of the hearing or just prior to it. Mr. Reardon has also failed on numerous occasions outlined above to properly serve and set his grievances. Five actions have been initiated properly by Ms. Kester. One action was attempted to be initiated by Mr. Reardon but he failed in doing so. The Court finds this argument without merit.

57. Next, Mr. Reardon argues that he has been denied Due Process under the Fourteenth Amendment. As outlined above, Mr. Reardon has received Due Process and this argument is without merit.

58. Mr. Reardon’s Motion for Recusal is therefore DENIED.

59. All other matters pending in his *Motion for Dismissal* filed on September 28, 2021 shall be set for hearing by Mr. Reardon at a later date. He will need to contact this Court’s Court Administrator and Ms. Pittman for agreed dates to hear it.

SO ORDERED this the 30th day of September, 2021



ROBERT Q. WHITWELL, CHANCELLOR